

# **TENTATIVE RULING FOR July 20, 2026**

## **Department S22 – Judge David Driscoll**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See [www.sb-court.org/general-information/remote-access](https://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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**CIVSB2508714**

**CECILIA GUTIERREZ-LEON v. CITRUS MOTORS ONTARIO, INC**

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### **TENTATIVE RULING**

This is a class, wage-and-hour litigation. On April 1, 2025, Plaintiff Cecilia Gutierrez-Leon filed her class action Complaint against Defendant Citrus Motors Ontario, Inc. The Complaint pleads 9 causes of action: (1) unpaid minimum wages, (2) unpaid overtime, (3) denied meals, (4) denied rest breaks, (5) failure to reimburse, (6) inaccurate wage statements, (7) untimely final wages, (8) untimely wages, and (9) unfair business practices. Defendant Citrus answered.

The Complaint alleges that Citrus employed Gutierrez-Leon and other hourly employees, but failed to pay them for all minutes worked. Particularly, it required its employees to work off-the-clock and during meal and rest periods. Also, it failed to provide timely, uninterrupted meals and rest breaks. Because of these failures, the employees wage statements were inaccurate, and they were not timely paid wages during employment and at separation. Finally, Citrus failed to reimburse employees for use of their cell phones for business purposes (§§11, 13, 15).

Defendant Citrus moved to compel Plaintiff Gutierrez-Leon to arbitrate her causes of action on an individual basis and dismiss the class claims. On March 18, 2026, the Court issued its ruling denying the motion because the arbitration agreement was unconscionable. Defendant Citrus appealed that ruling on May 11, 2026.

Before filing its appeal, Defendant Citrus moved for reconsideration based on new case law. Plaintiff Gutierrez-Leon opposes. Defendant Citrus replies.

To be entitled to reconsideration, a party must show that (1) evidence of new or different facts, circumstances, or law exists, and (2) the party has a satisfactory explanation for failing to produce such evidence earlier. (*Mink v. Superior Court (Arnel Development Company, Inc.)* (1992) 2 Cal.App.4th 1338, 1342.) Compliance by the party with the requirements of Code of Civil Procedure section 1008 is jurisdictional. (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 383-390; *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.)

The court, on its own motion, takes judicial notice of the defendant's notice of appeal of the subject March 18, 2026 court order. Notice of Appeal was filed on May 11, 2026.

Code of Civil Procedure section 916, subdivision (a), states, "[t]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." This statutory provision divests a trial court with jurisdiction over the subject matter on appeal. (*Blizzard Energy, Inc. v. Schaefers* (2021) 71 Cal.App.5th 832, 842.) The automatic stay under this section is to protect an appellate court's jurisdiction by preserving the status quo until the appeal is decided and to prevent a trial court from rendering an appeal futile by altering the appealed judgment or order. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) The trial court's power to enforce, vacate or modify an appealed judgment or order is suspended while the appeal is pending. (*Id.* pp 189-190).

Defendant's appeal concerns the same subject matter sought to be reconsidered, i.e., whether Defendants are entitled to compel Plaintiff, individually, to arbitration. As the court's arbitration ruling is currently on appeal, this Court lacks jurisdiction to reconsider the same ruling.

### **TENTATIVE RULING**

Defendant Citrus' Motion for Reconsideration is denied.